

Texas WIC Health and Human Services Commission

Effective April 1, 2026

Policy No. CS:23.0

Notification of Ineligibility, Disqualification, Termination or Expiration of Eligibility

Purpose

To ensure applicants and participants are informed of the reasons for ineligibility or termination and clearly understand their right to a fair hearing to appeal such a determination. To ensure participants are informed of the expiration date of their certification and the ability to reapply to continue receiving benefits if categorically eligible.

Authority

7 CFR Part 246.7

Policy

A person found ineligible for the program must be notified in writing of the reason(s) for the ineligibility and of the right to a fair hearing. Local agencies (LAs) must use the MIS WIC Notification of Ineligibility/Termination to document an applicant's or participant's ineligibility or termination from the program. A participant found ineligible must keep their Texas WIC Card.

A participant who is approaching the end of WIC Program eligibility due to termination or expiration of his/her certification period must be notified at least 15 days prior to the end of the certification.

Definitions

Ineligible - an individual who does not qualify for WIC at either initial or subsequent certification because:

- there is no documented condition of nutritional need (infants up to three months of age)
- the person's household income exceeds standards,

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- the person does not live within Texas,
- the child is five years or older,
- the person does not meet categorical requirements, or
- the person has not met the physical presence requirement.

Electronic Benefit Account (EBA) - the account where participant food benefits are being held for redemption.

Procedures

I. Notification of Ineligibility for Active Participants

- A. When ineligibility is determined during the certification visit and the applicant or parent/guardian/caretaker is physically present:
1. They will be offered to read and sign the WIC Notification of Ineligibility/Termination in the MIS or the myWIC account. The MIS retains a copy of the signed and unsigned notices.
 2. Any active participant, belonging to the household determined income or residency ineligible, must be issued one final set of benefits (to ensure he/she is receiving a 15-day notification) before termination.
Example: Child's certification period 11/20/xx through 4/30/XX. On January 10th, mom applies as a pregnant woman but is determined income ineligible. In order to provide the parent 15 days of notification before termination, the child is entitled to benefits through January 25th. Since the child's benefits are valid from January 1st to January 31st, this is considered to be the last issuance for which the child is eligible. To determine if an active participant is entitled to additional benefits, add 15 days to the date income ineligibility was determined for the applicant. If the active participant does not have benefits uploaded to the EBA through the 15th day, upload a single month's benefits before terminating the participant. If the participant has benefits on the 15th day, do not upload additional benefits. If the participant has benefits

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past the 15th day of the notification period, staff must void the future months' benefits.

- B. When ineligibility is determined after the certification visit, and the applicant or parent/guardian/caretaker is not physically present:
 - 1. When they do not have a myWIC account and the preferred method of contact is by phone: the LA will email or mail a copy of the WIC Notification of Ineligibility/Termination form. The MIS retains a copy of the notice.
 - 2. When they have a myWIC account or their preferred method of contact is by SMS or email: The WIC Notification of Ineligibility/Termination form is automatically sent from the MIS and a copy of the notice is retained.
 - 3. Any active participant, belonging to the household and determined income ineligible, must be provided one month of benefits to ensure he or she is receiving a 15-day notice before termination (See example under I. A. 2.).
- C. In situations where the participant has future month's benefits, LA staff must void future months benefits from the EBA and inform the parent/guardian the benefits will be voided.

II. Notification of Termination for Active Participants

- A. When termination is determined, ensure:
 - 1. A 15-day written notice must be provided if a participant is terminated within a certification period for the following reasons:
 - a. program abuse (includes dual participation)
 - b. caseload management/funding shortage
 - c. exceeds income guidelines due to a reassessment.
 - 2. The documented termination date must be at least 15 days from termination date in the MIS.

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- B. If participant/parent/guardian/caretaker is physically present at the clinic, they will be offered to read and sign the WIC Notification of Ineligibility/Termination form in the MIS or myWIC account. The MIS retains a copy of the signed and unsigned notices.
 - C. If the participant/parent/guardian/caretaker is not physically present, does not have a myWIC account, and the preferred method of contact is by phone: the LA will email or mail a copy of the WIC Notification of Ineligibility/Termination form. The MIS retains a copy of the notice.
 - D. When they have a myWIC account or the preferred method of contact is by SMS or email, the WIC Notification of Ineligibility/Termination form is automatically sent from the MIS and a copy of the notice is retained.
 - E. Participants found to exceed the income standard during an active certification, due to a reassessment of their income eligibility, must be provided one month of food benefits, to ensure he or she is receiving a 15-day notification before termination (see example under I.A.2).
- III. Notification of Certification Expiration - Notification of Certification Expiration must be given verbally during the last contact in person or in written form.
- IV. Any individual found ineligible or terminated for any reason has a right to a fair hearing. (See policy [CR:03.0](#)).